Master Services Agreement

This Master Services Agreement is entered into between Acme Corp and Beta Ltd for the provision of consulting services.

1. Definitions

Services means the consulting services described in the attached statement of work. Commencement Date means the date it is signed.

2. Indemnity

The Supplier shall indemnify and hold harmless the Customer and its officers from any claims, losses and damages arising out of the Services.

3. Limitation of Liability

To the fullest extent permitted by law, liability shall not be limited or excluded for any indirect, special or consequential losses arising under or in connection with this Agreement.

4. Term and Termination

The Customer may terminate this Agreement for convenience upon written notice. This Agreement renews automatically for successive one-year terms unless a party gives notice of non-renewal thirty days before the end of the current term.

5. Payment Terms

All invoices are due within 60 days of receipt of invoice. Late payments will accrue interest in accordance with applicable law.

6. Intellectual Property

The Supplier assigns to the Customer all right, title and interest in and to all intellectual property created during the Services.

7. Data Protection

Where the Supplier processes personal data during the Services, the parties shall comply with the GDPR and the Data Protection Act 2018.

8. Confidentiality
Confidential information shall be kept confidential for five years, but trade secrets shall remain confidential in perpetuity.
9. Non-Compete
The Supplier shall not compete with the Customer or solicit its clients anywhere in the territory for twelve months after the term ends.
10. Liquidated Damages
If the Supplier misses any service level it shall pay liquidated damages as a genuine pre-estimate of loss plus any penalty imposed.
11. Force Majeure and Disputes
Neither party is liable for delays caused by force majeure. Disputes shall be resolved by arbitration seated in London under the LCIA rules.
12. General
The Supplier shall not assign this Agreement without prior written consent. This Agreement may be amended at the Customer’s sole discretion. Notices under this contract must be given within five days following the relevant event.